

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK

EDWARD CAIN,

PLAINTIFF

vs

10 Civ 0529/JSR/THK
FIRST AMENDED COMPLAINT
[JURY TRIAL]

THE CITY OF NEW YORK, a
municipal entity, NEW YORK
CITY POLICE OFFICER, NEW
YORK CITY POLICE OFFICER
DETECTIVE WAILUR RAHMAN,
Shield # 6428, NEW YORK CITY
POLICE OFFICERS "JOHN DOES",
NEW YORK CITY POLICE OFFICER
"JOE" SMITH, a/k/a DWIGHT
SMITH, NEW YORK CITY
POLICE DETECTIVES WARREN ROHAN,
Shield # 02378, SAMUEL LaLLAVE,
Shield # 3824, and EDWARD
SINCLAIR, Shield # 05116, the
identified and non identified
persons in their individual and
in their official capacities,

DEFENDANTS

I. INTRODUCTION

1. This is a litigation which arises out of the Plaintiff's stop, detention and custodial arrest on November 7, 2009 at or about 8:00 A.M. or thereabouts in the vicinity and proximity of Troy Avenue and Lincoln Road, Brooklyn, New York.

2. The litigation also arises out of the Plaintiff's stop, detention, and his custodial arrest and the dismissal of the charge associated with the Plaintiff's arrest on December 16, 2009.

3. The charges were dismissed subsequent to the Plaintiff's arraignment and after the Plaintiff appeared at a grand jury proceeding and testified on or about December

2, 2009 and after the grand jury declined to issue a bill of indictment.

4. This is an action in which the Plaintiff seeks relief for the violation of his rights as guaranteed under the laws and Constitution of the United States and, as well, under the laws and Constitution of the State of New York.

5. The Plaintiff seeks monetary damages and such other relief, including injunctive relief and declaratory relief [if appropriate], as may be in the interest of justice and as may be required to assure that the Plaintiff secures full and complete relief and justice for the violation of his rights.

II. JURISDICTION

6. Jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343 and 1367 in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and the Fourth and Fourteenth Amendments to the United States Constitution and the laws and Constitution of the State of New York.

7. The facts which give rise to the State law claims, have a common nucleus with the facts which give rise the federal law claims. The federal and the pendent State law claims arise out of the same transaction.

8. The Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which the Plaintiff seeks, in addition to monetary damages, whatever other relief is needed to provide full and complete justice including, if appropriate, declaratory and injunctive relief.

9. This is an action in which the Plaintiff seeks relief for the violation of his rights as guaranteed under the laws and Constitution of the United States and, as well, as guaranteed under the laws and Constitution of the State of New York.

III. THE PARTIES

10. The Plaintiff is an African American citizen and resident of the State of New York, the City of New York, and the County of New York.

11. The Defendant City of New York is a municipal entity which was created under the authority of the laws and Constitution of the State of New York and which is authorized with, among other powers, the power to maintain a police department for the purpose of protecting the welfare of those who reside in the City of New York.

12. Defendants Waliur Rahman, Shield # 6428 and "Joe" Smith a/k/a Dwight Smith, Warren Rohan, Shield # 3824, Samuel Lallave, Shield # 3824, Edward Sinclair, Shield # 05116, and "John Does" are New York City Police Officers and agents and employees of the City of New York. Although their actions and conduct herein described were unlawful and wrongful and otherwise violative of the Plaintiff's rights as guaranteed under the laws and Constitution of the United States and of the State of New York, they were taken in and during the course of their duties and functions as New York City Police Officers and as agents and employees of the City of New York and incidental to the otherwise lawful performance of their duties and functions as New York City Police Officers and agents and employees of the City of New York.

IV. ALLEGATIONS

13. The Plaintiff is Edward Cain.

14. The Plaintiff is thirty nine years of age.

15. The Plaintiff's birth date is October 7, 1970.

16. The Plaintiff is an African American citizen and resident of the State of New York, the City of New York, and the County of New York.

17. The Plaintiff resides at on West 42nd Street, New York City, New York.

18. The Plaintiff resides alone.

19. The Plaintiff is a high school graduate.

20. The Plaintiff graduated from Concord High School, Staten Island, New York, in January 1990. The Plaintiff currently attends the College of New Rochelle where he has accumulated eighty seven credits and majors in the area of psychology.

21. The Plaintiff was diagnosed with a bi-polar condition and disorder in 2005. In 2006, the Plaintiff was diagnosed with a cancer condition. The Plaintiff is also diagnosed with the serious chronic HIV positive condition.

22. The Plaintiff receives SSI and SSD benefits as a consequence of the afore-described conditions.

23. Since being diagnosed as described above, the Plaintiff has held various part time employment positions.

24. The Plaintiff is part of a ministry associated with the Pentecostal denominational Zion Tabernacle Holiness Church which is located at 150 Hart Street, between Throop and Tompkins, Brooklyn, New York. Pastor Charles P. Watts, Jr., is the Senior Pastor.

25. The Plaintiff has been associated with the afore-described church and its ministry for approximately two and one half years.

26. As part of his ministry duties and functions, the Plaintiff has been engaged as a Sunday School Teacher and, as well, as a Pentecostal minister.

27. This litigation arises out of the Plaintiff's arrest on November 7, 2009 and the preferral of charges against him associated therewith and the Plaintiff's subsequent prosecution resulting, eventually, in the dismissal of the criminal proceedings, which were instituted against him, on December 16, 2009.

28. On November 7, 2009, the Plaintiff got up at his residence on West 42nd Street and traveled to Brooklyn, New York in anticipation of attending his nephew's birthday party on that date at the residence where his nephew resided with the Plaintiff's brother [in Brooklyn, New York]. The Plaintiff's nephew was celebrating his second birthday.

29. The Plaintiff got on a 2 train at Times Square and traveled to Brooklyn where he then transferred to the 3 train at Franklin Avenue station in Brooklyn, New York.

30. The Plaintiff thereafter left the subway at Utica Avenue station, Brooklyn, New York.

31. The Plaintiff intended to shop for a gift for his nephew on Eastern Parkway.

32. When the Plaintiff left the subway it was about 8:00 A.M. in the morning.

33. After leaving the subway at the Utica Avenue station, the Plaintiff went to the JP Morgan Chase bank and withdrew sixty dollars in cash, for which he received a slip. The JP Morgan Chase bank branch was located at Utica Avenue and Lincoln Road.

34. The Plaintiff already had sixteen dollars in his possession making a total of seventy six dollars with the sixty dollar withdrawal.

35. Before going shopping for a gift for his nephew in anticipation of attending the birthday party for his nephew which was to commence at or about 11:00 A.M., the Plaintiff decided to get some breakfast.

36. The Plaintiff walked about two blocks to a Jamaican restaurant, of which he was aware because of his general knowledge of the area, in the vicinity of the corner of Troy Avenue and Lincoln Road, Brooklyn, New York.

37. As he walked up to the restaurant, Prince Brown, an individual whom the Plaintiff knew previously, exited the restaurant, approached the Plaintiff, and engaged the Plaintiff in a greeting to which the Plaintiff responded in an appropriate greeting fashion.

38. As they were greeting each other, Prince Brown appeared to observe an individual walking toward him and, in turn, walked toward the individual, that individual being someone wholly unknown to the Plaintiff.

39. The Plaintiff subsequently came to learn that the individual's name was Terrence.

40. The Plaintiff was walking with Prince Brown and, as Prince Brown and the other individual came together to speak, the Plaintiff stayed and held back from the greetings that the two individuals exchanged at the location where they were then located.

41. At that moment and without any prior notice or other knowledge, unmarked cars, came upon the scene and plain clothes individuals exited the vehicles and took the individual, known as Terrence, to the ground.

42. Other plain clothes individuals propelled the Plaintiff and Prince Brown against a wall as the Plaintiff was walking toward the restaurant in the vicinity of the location where the individual known as Terrence was taken to the ground.

43. The Plaintiff learned that the unmarked vehicles were New York City Police Department vehicles and that the plain clothes individuals were New York City Police Officers, all of whom appeared to be either Latino or African American [individuals of color].

44. There were several cars, perhaps, three, and there was several Officers, at a minimum five and likely more.

45. At the wall against which Prince Brown and the Plaintiff were propelled, the Plaintiff and Prince Brown were frisked and searched.

46. The Plaintiff did not have any weapons, contraband or drugs of any kind in his possession and none of the foregoing was found to be in his possession.

47. It is believed that Prince Brown had no drugs or contraband or weapons in his possession.

48. The Plaintiff did have seventy six dollars in his possession [as described previously].

49. The Plaintiff informed that Officers that he had just been to an ATM machine at the JP Morgan Chase Bank about two blocks from the location where they were then situated and that he had withdrawn sixty dollars and that he had a receipt for such. Such was to no avail.

50. The Plaintiff was placed under arrest, detained, handcuffed, and, along with Prince Brown and the other individual known as Terrence, placed in a police van.

51. The Plaintiff and the others were detained in the van for upwards of four to five hours or thereabouts being driven around and about in the van. During the period of time approximately three other individuals were placed in the van. Moreover, during that four to five hour period in the van, the Plaintiff was handcuffed behind his back and was in pain. The Plaintiff complained to the Officers about his pain but to no avail.

52. The stop, detention, and arrest occurred in the vicinity of Troy Avenue and Lincoln Road, as described, at or about 8:00 A.M.

53. The Plaintiff and the others eventually were brought to the 77th Precinct where the Plaintiff was detained in custody for several hours until he was transported to Brooklyn Central Booking.

54. While at the 77th Precinct, the Plaintiff was processed including being fingerprinted and photographed.

55. The Plaintiff was subjected to an intrusive body search at the Precinct where he was made to disrobe and to squat and to cough.

56. The Plaintiff did not possess any drugs, contraband or weapons and the Plaintiff never engaged in any unlawful transaction involving any drugs, contraband, or weapons.

57. It is believed that the Plaintiff was part and parcel of a New York City Police Department narcotics sweep field operation which caught him in a web simply because he was at a particular location at a particular time -that is because he was "there" and not because of any observed specific and particular conduct from which an objectively reasonable probable cause mindset could have been formed.

58. The Plaintiff was eventually produced before a Judge at an arraignment at or about 2:00 P.M. on November 8, 2009, approximately thirty hours after having been first stop, detained, and taken into custody at the Troy Avenue and Lincoln Road location [as described above].

59. The Plaintiff was charged with a felony crime of engaging in a drug transaction.

60. The Plaintiff pled not guilty and was released on his own recognizance.

61. On December w, 2009 the Plaintiff appeared and testified in a grand jury proceeding.

62. The grand jury declined to return any indictment against the Plaintiff.

63. On December 16, 2009, the criminal proceedings against the Plaintiff were dismissed.

64. The Plaintiff committed no criminal offense or other offense whatsoever and no reasonable police officer could have believed that the Plaintiff committed any criminal offense or any other offense under and of the law to justify his, stop, detention, custodial arrest, further detention, the preferral of any charge, including but not limited to engaging in a felony drug transaction.

65. There was no basis for the stop and detention and eventual custodial arrest of the Plaintiff by the New York City Police Officers, each of whom is an agent and employee of the City of New York.

66. While the actions and conduct of the New York City Police Officers were unlawful they were taken in the course of their duties and functions and incidental to the otherwise lawful performance of those duties and functions as New York City Police Officers and as agents and employees of the City of New York. It is believed that the Plaintiff's arresting Officer was Detective Waliur Rahman, Shield # 6428 and the supervising sergeant of and for the arrest was Sergeant "Joe" Smith, both of whom it is believed were assigned to the Brooklyn North Narcotics Division.

67. There was no basis for the stop and detention and inquiry and there was no probable cause for the custodial arrest of the Plaintiff or for the preferral of charges against the Plaintiff or for the prosecution of the Plaintiff.

68. The Plaintiff was unlawfully stopped and detained, since there was absolutely no basis for the initial stop and detention, he was subjected to a false arrest and unlawful custodial detention and imprisonment and he was subjected to malicious prosecution, malicious abuse of criminal process and to excessive, unreasonable and unnecessary force in the form of his handcuffing and, as well, to an unnecessary, excessive, and unreasonable intrusive body search.

69. The actions and conduct herein described were propelled by the crime offense enforcement initiatives of the City of New York which is grounded in the philosophy of the "ends justifies the means" including but not limited to racial profiling that propels New York City Police Officers to make unlawful and otherwise unjustified stops and detentions of individuals simply because of the race of the individual as an African American.

70. Such crime offense enforcement initiative propels officers to make stops, detentions, and custodial arrests where there is no basis for the initial stop and detention and no probable cause for any arrest and, by such, to generate arrest statistics and to otherwise make examples of individuals in the hope that such would depress crime offenses.

71. The policy and practices have a disproportionate impact on African Americans who, because of their race, are, often times and for no other reason but the race factor singled out for stops, detentions and arrests and derogatory treatment, based on racial considerations and bias, and discriminatory treatment based on racial factors bias.

72. The Plaintiff was unlawfully stopped and detained and falsely arrested and subjected to racially discriminatory conduct and subjected to malicious prosecution and the malicious abuse of criminal process and excessive and unreasonable and unnecessary force [in the form of handcuffing] and excessive detention.

73. The actions, conduct, policies and practices and customs herein described violated the Plaintiff's rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

74. The actions, conduct, policies and practices, and customs violated the Plaintiff's rights under the laws and Constitution of the State of New York including unlawful stop and detention, false arrest and imprisonment, malicious abuse of criminal process, and malicious prosecution, and assault and battery [in the form of the handcuffing and the physical actions associated with the taking of the Plaintiff into custody], racial discrimination, and excessive detention.

75. The actions, conduct, policies and practices and customs were negligent and otherwise the proximate cause of the injuries and damages suffered by the Plaintiff.

76. The Plaintiff suffered injuries and damages including loss of liberty, fear, anxiety, mental distress, emotional anguish, and psychological trauma, and embarrassment, and humiliation, and physical pain and suffering.

77. As noted previously, the Plaintiff was excessively handcuffed causing him undue physical pain and suffering for a period of five hours or thereabouts when he otherwise was being transported around and about in a van rather than being promptly brought to a New York City Police Department facility for post custodial arrest processing.

78. It is believed that the foregoing handcuffing was propelled by the field operation policy and practice employed by the Defendants relative to the Plaintiff's arrest.

79. Further and as noted, the Plaintiff had, as of date of his arrest, pre-existing chronic conditions including a diagnosed bi-polar condition for which the Plaintiff is prescribed medication and for which he receives regular counseling; and, in addition, a pre-existing cancer condition for which he receives medication and otherwise receives counseling.

80. As noted, the Plaintiff has also been diagnosed as HIV positive. Such compromises his immune system. The Plaintiff receives counseling and treatment for that chronic condition.

81. All of the foregoing implicates the damages which the Plaintiff suffered as a consequence of his unjustified and unlawful arrest and all that flowed from the arrest.

82. The Plaintiff has not yet placed a monetary value on the damages which he incurred although he believes them to be substantial and to include compensatory and punitive damages.

83. The Plaintiff has no other adequate remedy of law other than for the institution of this litigation.

V. CAUSES OF ACTION

A. FIRST CAUSE OF ACTION

84. The Plaintiff reiterates Paragraph #'s 1 through 83 and incorporates such by reference herein.

85. The Plaintiff was unlawfully stopped and detained and falsely arrested and falsely and excessively imprisoned and detained in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

86. The Plaintiff suffered injuries and damages.

B. SECOND CAUSE OF ACTION

87. The Plaintiff reiterates Paragraph #'s 1 through 86 and incorporates such by reference herein.

88. The Plaintiff was unlawfully stopped and detained and falsely arrested and falsely and excessively imprisoned and detained in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

89. The Plaintiff suffered injuries and damages.

C. THIRD CAUSE OF ACTION

90. The Plaintiff reiterates Paragraph #'s 1 through 89 and incorporates such by reference herein.

91. The Plaintiff was subjected to racially discriminatory treatment in violation of his rights as guaranteed under the Fourteenth Amendment to the United

States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

92. The Plaintiff suffered injuries and damages.

D. FOURTH CAUSE OF ACTION

93. The Plaintiff reiterates Paragraph #'s 1 through 92 and incorporates such by reference herein.

94. The Plaintiff was subjected to racially discriminatory treatment in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

95. The Plaintiff suffered injuries and damages.

E. FIFTH CAUSE OF ACTION

96. The Plaintiff reiterates Paragraph #'s 1 through 95 and incorporates such by reference herein.

97. The Plaintiff was subjected to malicious prosecution in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

98. The Plaintiff suffered injuries and damages.

F. SIXTH CAUSE OF ACTION

99. The Plaintiff reiterates Paragraph #'s 1 through 98 and incorporates such by reference herein.

100. The Plaintiff was subjected to malicious prosecution in violation of his rights under the laws and Constitution of the State of New York.

101. The Plaintiff suffered injuries and damages.

G. SEVENTH CAUSE OF ACTION

102. The Plaintiff reiterates Paragraph #'s 1 through 101 and incorporates such by reference herein.

103. The Plaintiff was subjected to malicious abuse of criminal process as his arrest was designed for a

collateral purpose of increasing arrest statistics and not for the legitimate and lawful purpose it was designed.

104. The Plaintiff was subjected to malicious abuse of criminal process in violation of his rights guaranteed under the Fourteenth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

105. The Plaintiff suffered injuries and damages.

H. EIGHTH CAUSE OF ACTION

106. The Plaintiff reiterates Paragraph #'s 1 through 105 and incorporates such by reference herein.

107. The Plaintiff was subjected to malicious abuse of criminal process in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

108. The Plaintiff suffered injuries and damages.

I. NINTH CAUSE OF ACTION

109. The Plaintiff reiterates Paragraph #'s 1 through 108 and incorporates such by reference herein.

110. The Plaintiff was subjected to a excessive force in the form of extended handcuffing in violation of his rights as guaranteed under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

111. The Plaintiff suffered injuries and damages.

J. TENTH CAUSE OF ACTION

112. The Plaintiff reiterates Paragraph #'s 1 through 106 and incorporates such by reference herein.

113. The Plaintiff was subjected to assault and battery in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

114. The Plaintiff suffered injuries and damages.

K. ELEVENTH CAUSE OF ACTION

115. The Plaintiff reiterates Paragraph #'s 1 through 114 and incorporates such by reference herein.

116. The Plaintiff was subjected to unreasonable terms and conditions of his stop, detention, and custodial arrest including an intrusive search and an extended period of custodial detention in a police vehicle in violation of his rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

117. The Plaintiff suffered injuries and damages.

L. TWELFTH CAUSE OF ACTION

118. The Plaintiff reiterates Paragraph #'s 1 through 117 and incorporates such by reference herein.

119. The Plaintiff was subjected to unreasonable terms and condition of his stop, detention, and custodial arrest including an intrusive search and an extended period of custodial detention in a police vehicle in violation of his rights as guaranteed under the laws and Constitution of the State of New York.

120. The Plaintiff suffered injuries and damages.

M. THIRTEENTH CAUSE OF ACTION

121. The Plaintiff reiterates Paragraph #'s 1 through 120 and incorporates such by reference herein.

122. The policies, practices and customs herein described propelled the actions and conduct herein. Those policies, practices, and customs violated the Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

123. The Plaintiff suffered injuries and damages.

N. FOURTEENTH CAUSE OF ACTION

124. The Plaintiff reiterates Paragraph #'s 1 through 123 and incorporates such by reference herein.

125. The actions and conduct and policies, practices and customs herein were negligent and otherwise violative of the Plaintiff's rights under the laws and Constitution of the State of New York.

126. The Plaintiff suffered injuries and damages.

O. FIFTEENTH CAUSE OF ACTION

127. The Plaintiff reiterates Paragraph #'s 1 through 126 and incorporates such by reference herein.

128. Pursuant to and under pendent State law and pendent State claim jurisdiction and independent of the federally based claim against the Defendant City of New York, the Defendant City of New York is responsible, under State law claims, for the actions and conduct of its Defendant Officers, as employees and agents of the City of New York, pursuant to the doctrine of respondeat superior.

129. The Plaintiff suffered injuries and damages.

P. SIXTEENTH CAUSE OF ACTION

130. The Plaintiff reiterates Paragraph #'s 1 through 129 and incorporates such by reference herein.

131. The Defendant City of New York, if the City represents its Officers, uniformly and as a matter of policy and practice indemnifies its Officers for any award of both punitive damages and compensatory damages.

132. The named and unnamed individual Defendants are employees and agents of the City of New York and their conduct, as described, was taken in the course of their duties and functions as New York City Police Officers and, in their capacities as such, as agents and employees of the City of New York.

133. Their actions and conduct, while unlawful and unconstitutional, nonetheless were actions and conduct taken to the otherwise lawful performance of their duties

and functions as agents and employees of the City of New York.

134. The Plaintiff is entitled to recover against the City of New York for the conduct of its named and unnamed Officers under the federal claim jurisdiction pursuant to the doctrine of respondeat superior.

135. The Plaintiff suffered injuries and damages.

WHEEREFOR and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- [a] Invoke pendent party and pendent claim jurisdiction.
- [b] Award appropriate compensatory and punitive damages.
- [c] Award appropriate declaratory and injunctive relief.
- [d] Empanel a jury.
- [e] Award attorney's fees and costs.
- [f] Award such other and further relief as the Court deems to be in the interest of justice.

DATED: New York, New York
May 6, 2010

Respectfully submitted,

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